

Plaintiff cannot obtain relief pursuant to CCP § 663 because that section addresses setting aside a judgment, not a dismissal. Even if this were a judgment, Section 663 requires a Notice of Intention to be filed and served within 15 days after entry of dismissal. Defendant served the order dismissing the action electronically on December 19, 2025 and served notice of the entry of the order of dismissal on Plaintiff by electronic service on December 30, 2025. See Notice of Entry of Dismissal filed December 30, 2025. Plaintiff filed her Notice of Intention 57 days later on February 25, 2026. See Plaintiff's Notice of Intention to Move to Vacate Sanctions and Set Aside the Dismissal, filed February 25, 2026. Thus, even if this were the proper vehicle for Plaintiff her Notice of Intention was untimely.

In addition, Plaintiff's Notice of Intention did not "designate the grounds upon which the motion will be made and specifying the particulars in which the legal basis for the decision is not consistent with or supported by the facts," as required by Section 663(a).

The court agrees that the Plaintiff's motions are the equivalent of a Motion for Reconsideration under CCP § 1008. However, Plaintiff has failed to seek reconsideration within ten days of the order of dismissal, as required by the statute. In addition, Plaintiff fails to assert "new or different facts, circumstances, or law," as required by Section 1008.

Plaintiff's Motion to Set Aside Dismissal, and Motion to Vacate Orders and Sanctions are **denied**.

3. 9:00 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
*HEARING ON MOTION IN RE: TO VACATE ORDER AND SANCTIONS
FILED BY: WANG, NA
TENTATIVE RULING:

See Line 2 above.

4. 9:00 AM CASE NUMBER: C23-00634
CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.
*HEARING ON MOTION IN RE: AS TO BRUCE GRIGGS FOR DEF GOLDEN GATE BELL AND
DIVERSIFIED RESTAURANT GROUP, LLC
FILED BY: GOLDEN GATE BELL, LLC.
TENTATIVE RULING:

Before the Court is an application by Texas attorney Bruce Griggs to be admitted to appear in this specific civil action *pro hac vice*. The application was originally filed

May 19, 2026 and set for hearing on October 9, 2026 in this department.

The application is **denied without prejudice** for lack of proof that the *ex parte* order filed June 10, 2026 advancing hearing on this motion from October 9, 2026 to June 26, 2026 was served on all parties.

Parties are ordered to appear.

The application may be granted at hearing subject to hearing from the Plaintiff.

5. 9:00 AM CASE NUMBER: C23-02087

CASE NAME: JOHN BROSNAN VS. GEICO INDEMNITY COMPANY

*HEARING ON MOTION IN RE: FOR DISMISSAL OF PENDING ACTION WITH PREJUDICE

FILED BY: GARCIA, GINA

TENTATIVE RULING:

Before the Court is a motion by defendant Gina Garcia for judgment of dismissal of the pending action with prejudice. For the reasons set forth, the motion is **granted**.

Background

Plaintiff John Brosnan alleges he was in a car accident in which defendant Gina Garcia struck his vehicle. He asserts a claim for negligence against her arising out of the accident. The complaint also named Geico Indemnity Company as a defendant. Geico filed a demurrer to the complaint which was sustained without leave to amend as reflected in the Court's Minute Order of January 26, 2024. (Kilroy Decl. ¶¶ 5, 6 and Exh. B.)

Brosnan filed his complaint initiating this action on August 23, 2023. The complaint reflects he was represented by counsel Sanford Steven Troy when the action commenced. Plaintiff alleges in the complaint that the accident occurred on August 3, 2021. The complaint on its face shows it was filed more than two years after the accident.

On June 24, 2024, a substitution of counsel was filed by which Plaintiff's counsel substituted out of the case and Brosnan began representing himself. Thereafter, he personally served defendant Garcia, and on October 21, 2024, defendant Garcia filed a demurrer to the complaint based on the statute of limitations. (Kilroy Decl. ¶¶ 7-10.) The demurrer was sustained without leave to amend pursuant to the Court's tentative ruling, adopted on February 21, 2025 as reflected in the Court's minute order of that date. On February 6, 2026, counsel for Garcia served and filed a belated notice of ruling with a copy of the February 21, 2025 minute order. (See Kilroy Decl. ¶¶ 8-11 and Exh. C.)